

MICROSOFT DYNAMICS 365 ERP IMPLEMENTATION

CONTRACT

BETWEEN

PUNTLAND MINORITY WOMEN DEVELOPMENT

ORGANIZATION (PMWDO)

AND

BRIGHT INNOVATIONS LIMITED

This **Microsoft Dynamics 365 Implementation Agreement** (the “Agreement”) is made on 5th March 2023

BETWEEN Puntland Minority Women Development Organization hereinafter referred to as (the “Customer”), an NGO which is registered in Puntland, with its head office located at;

P.O Box,
Puntland.

AND Bright Innovations Limited, hereinafter referred to as (the “Service Provider”) a corporation organized and existing under the Laws of the republic of Kenya with its head office located at;

Norfolk Towers, 1st Floor –Kijabe Street .
P.O. Box 35351-00100,
Nairobi, Kenya.

RECITALS

WHEREAS customer wishes to **implement Microsoft Dynamics 365 ERP System**

And wants to assign a Service Provider to develop and implement the system, WHEREAS the Service provider is considered for provisioning of the solution required to support and sustain the Customer’s system.

NOW, THEREFORE, In consideration of the mutual agreements herein contained, the parties hereto, intending, to be legally bound, agrees as follow:

- 1. System Development & Implementation:** The Service provider will develop and implement Microsoft Dynamics 365 ERP.

The system will have the following Modules:

- i. **Finance & Payroll Management Module**
- ii. **Procurement Management Module**

iii. **Projects Management Module**

2. **Cloud Hosting Service:** The Hosting services will be provided by the service Provider. The service will be available 99.9% of the time in a given monthly billing period. The monthly charged amount will be subject to usage. Monthly Hosting charges are \$100.00
3. **Maintenance & Support:** The Service Provider will carrying out system maintenance and support post-implementation. Remote assistance using Remote Desktop Applications and a Virtual Private Network where available will be used to compliment On-site support. Annual support fee will be 10% of the project value payable the 2nd year of implementation.
4. **Remuneration:** The customer will compensate for this service by paying an amount of \$21,850.00(Twenty one thousand and eight hundred and fifty dollars).

Payment Plan

S/N	Description	Amount in USD	Due Time
1	1 st Phase - 40% On signing of Contract	8,740.00	To be paid upon signing of the contract
2	2 nd Phase – 50% After training	10,925.00	After System design, development, testing, data migration and End-user training.
3	3 rd Phase- 10% After- Going LIVE	2,185.00	After System going-live and production environment has stabilized.

5. **Terms:** This agreement covers the whole life of the system whereby the Service Provider will develop the system in accordance with the implementation plan provided in the proposal.
6. **Relationship:** The parties agree that this agreement creates an independent contractor relationship, not an employment relationship. The Service Provider acknowledges and agrees that PMWDO will not provide the Service Provider with employee benefits.

- 7. Termination:** PMWDO shall be entitled to terminate this agreement at any time by giving the Service Provider not less than two (2) weeks written notice.

Either party may terminate this agreement with immediate effect where:

- i. The other is in material breach of any of its obligation under this agreement and the breach is not capable of remedy or where the breach is capable of remedy, it fails to remedy the breach within 10 days of being required in writing to do so.
- ii. Either party goes into liquidation, is declared bankrupt or has a bankruptcy order against them, or any similar procedure in any jurisdiction provided is admitted under the applicable laws.

- 8. Work Product& Quality:** Any data, report, documents or other things or information provided by the organization to the Service Provider during performance of the service under this agreement shall be and remain the sole property of PMWDO at all times. During the term of this Agreement and during system maintenance period, Developer will use reasonable cause to prevent the unauthorized use or dissemination of Customer's confidentiality information. Reasonable can means at least to same degree of cause the Developer uses to protect its own confidential information for unauthorized disclosure. The Service Provider warrants to the organization at all services provided will be of good quality in conformance with the highest profession standard.

- 9. Modifications of Agreement:** Modification and amendments to this Agreement including any exhibit or appendix hereto shall be enforceable only if they are in writing and are signed by authorized representatives of both parties.

- 10.Non-Solicitation of Employees:** Customer agrees not to knowingly hire or solicit Developer's Employees during performance of this Agreement and for a period of 2 years after termination of this Agreement without Developer's written consent. Conversely, Developer also agrees not to knowingly hire or solicit Customer's Employees during

performance of this Agreement and for a period of 2 years after termination of this Agreement without Customer's written consent.

SIGNATURES

Each party represents and warrants that on this date they are duly authorized to bind their respective principals by their signature below.

IN WITNESS WHEREOF, the parties have executed this Agreement on the dates set for the first above. With full knowledge of its content and significance and intending to be bound by the terms hereof.

On behalf of the Customer

(Puntland Minority Women Development Organization)

Name.....

Designation.....

Signature

Date:

On behalf of the Service Provide

(Bright Innovations Ltd)

Name: Jonathan Kisemy

Designation: Managing Director

Signature

Date: 05/03/2023

